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# AN INTERGENERATIONAL AND PERPETUAL IMPERIUM OF DOMINATION AND SUBJUGATION OF INDIGENOUS PEOPLES: THE DOCTRINE OF CHRISTIAN DISCOVERY AND ROYAL SUPREMACY

*Abstract*

This paper traces the historical and legal evolution of sovereignty in relation to Indigenous land rights, exploring how colonial legal systems have sustained race-based power structures through legal fictions such as *terra nullius* and *res nullius*. It argues that the colonial legal system has consistently framed Indigenous peoples as *usufructuaries*, entitled to the "use" of land but not ownership, while maintaining the ultimate sovereignty of the colonial state. The paper examines the conceptual parallels between Blackstone's doctrine of *occupancy*, the U.S. Supreme Court's decision in *Johnson v. McIntosh* (1823), and the modern recognition of *native title*, particularly in Australia's landmark *Mabo v. Queensland* (1992) decision.Occupancy and native title, like Blackstone's "user" rights, reflects a colonial framework that subordinates Indigenous land rights to the Crown's absolute sovereignty, a sovereignty founded on the principles of the *Doctrine of Discovery* and the *Act of Supremacy* (1534).

Through the lens of the authors two-chamber model of sovereignty, *absolute sovereignty/imperium* (Chamber 1) and *proprietary rights/dominion* (Chamber 2), the paper highlights how these legal fictions perpetuate a racialised hierarchy where Indigenous peoples are positioned as neither fully sovereign nor fully enslaved. The concept of *native title* is critiqued as a modern rebranding of Blackstone's '*user rights*,' which continue to deny Indigenous peoples full ownership and control over their lands, positioning them within a colonial legal system that traps them in a perpetual state of legal subordination.

In tracing the historical lineage of *terra nullius* and its evolution into *native title*, the paper reveals how colonial legal systems used race-based distinctions to justify the dispossession and marginalisation of Indigenous peoples. Despite its suggested advancement, the recognition of native title does not represent equality or true land restitution but rather reflects a continued denial of Indigenous sovereignty. The paper concludes with a call for a fundamental reassessment of the colonial legal structures that uphold *absolute sovereignty*and their inherent ties to the racialised dispossession of Indigenous lands. The continued legitimacy of these doctrines, embodied in both legal and political systems, ensures that Indigenous peoples remain trapped within a system designed to perpetuate domination rather than justice.

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## *Introduction*

The papal bulls *Dictatus Papae* (1075) and *Unam Sanctam* (1302) established the absolute supremacy of the pope over both spiritual and temporal affairs of Christendom, asserting that salvation itself was contingent on submission to papal authority.[1] Grounded in the Two Swords Doctrine, which divided authority between spiritual and temporal powers but ultimately subordinated the latter to the pope, this framework legitimized the subjugation of perceived "barbaric" peoples, who were deemed incapable of self-rule under divine and natural law, an adaptation of Aristotle's concept of natural slaves.[2] King Henry VIII's *Act of Supremacy* (1534) severed the Two Swords principle but retained the structure, transferring ultimate authority and power to the Crown and to himself and his successors in perpetuity.

Thomas Aquinas reinforced the papal hierarchical order, arguing that non-Christian dominion was deficient and could be rightfully supplanted by Christian rulers.[3] This justification became the foundation for the Doctrine of Discovery, formalized in *Dum Diversas* (1452), *Romanus Pontifex* (1455), and *Inter Caetera* (1493), which authorized Christian sovereigns to claim lands occupied by non-Christians and to reduce them to servitude.[4] These bulls relied on *occupatio* (occupation) in Roman law, framing non-Christian lands as *res nullius*, a legal fiction that reduced Indigenous peoples to *nullus*, meaning "none" or "not any," without legal standing or sovereign authority.[5] Originally an unquestionable papal prerogative, this doctrine was later secularized into English common law, shaping the legal architecture of colonial expansion and Indigenous dispossession, as seen in cases in the United States, Australia, Canada, and New Zealand.[6]

The Two Swords Doctrine, once a spiritual justification for conquest, persists in modern legal structures through a dual-chambered system. One chamber preserves the absolute sovereignty (*res nullius*) of the state (Sword/Chamber 1), while the other (Sword/Chamber 2) governs containment mechanisms (named modes of acquisition), including occupation (native title), cession (treaty), and conquest (treaties and occupancy), ensuring that Indigenous claims remain confined within the construct of legal fictions of proprietary rights (Chamber 2) rather than challenging sovereignty itself (Chamber 1).[7] Legal history shows that modes of acquisition are never overturned in common law (Chamber 2). Similarly, sovereignty remains non-justiciable and unquestionable in Chamber 1, creating a jurisprudential revolving door of inequality where legal challenges are confined within the very framework that upholds colonial authority.[8]

One of the most striking aspects of sovereignty in the historical cases in the United States, Australia, Canada, and New Zealand is the absolute exclusion and denial of Indigenous

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[1] *Dictatus Papae*, in 1 The Papal Decrees 1075 (1075); Boniface VIII, *Unam Sanctam* (1302).

[2] Brian Tierney, *The Crisis of Church and State, 1050–1300* (University of Toronto Press, 1988), 186–90.

[3] Thomas Aquinas, *Summa Theologica*, Q. 10, art. 8 (1265–1274), in Robert Pasnau, "Thomas Aquinas," *Stanford Encyclopedia of Philosophy* (2022).

[4] Frances G. Davenport, *European Treaties Bearing on the History of the United States and Its Dependencies* (1917), 20-26; Steven Newcomb, *Pagans in the Promised Land: Decoding the Doctrine of Discovery* (2008), xv–xvi.

[5] Peter Fitzpatrick, *Modernism and the Grounds of Law* (2005), 79; Newcomb, supra note 4, 104–08.

[6] Ibid.

[7] "Two Swords," *Catholic Dictionary*, CatholicCulture.org, https://www.catholicculture.org/culture/library/dictionary/index.cfm?id=36967; Fitzpatrick, supra note 5, at 82.

[8] *Mabo v. Queensland (No. 2)* (1992) 175 CLR 1, [31–32] (Brennan J.).

peoples' voices in each country's foundational case. These cases determined Indigenous people's legal status, land rights, and relationship to the state in every sense, yet not a single Indigenous person participated as a litigant, witness, or even *amicus curiae* (a friend of the court).[9] This pattern was mirrored in each jurisprudence. Indigenous peoples remained invisible in proceedings that directly shaped their legal existence globally, a structural human wrong.[10]

### *Doctrine of Royal Supremacy*

From the 1530s onward, the English common law jurisdiction began adapting and secularizing ius commune ecclesiasticum—the universal canon law system of the Catholic Church—into ius commune, the common law system of Protestant England.[11] This shift was largely driven by Henry VIII's rejection of papal supremacy, a direct challenge to the authority conferred by Dictatus Papae (1075) and Unam Sanctam (1302).[12] Within this, the Doctrine of Discovery was secularized from Christian terms into English common law principles. This rejection of papal authority fractured the unity of Christendom, leading to a gradual secularization of Jus Gentium (the law of nations).[13] This legal shift reframed sovereignty as a function of state power rather than divine delegation.

### *Henry VIII: Catholic King to Protestant Sovereign*

Henry VIII was a Catholic king for 25 years (1509–1534) and a Protestant king for 13 years (1534–1547) until his death.[14] Unlike his father, Henry VII, a Catholic monarch who issued Cabot's Charters in 1496 and 1498 to discover and possess the continent of so-called North America in alignment with Christendom and papal bulls, [15]Henry VIII did not issue any exploration decrees or colonial charters. Instead, his reign was dominated by internal governance and the consolidation of royal authority.[16]

The turning point came in 1534 when, following his excommunication from the Catholic Church, Henry VIII formally rejected papal authority and declared himself Supreme Head of the Church of England.[17] This marked a radical reconfiguration of sovereignty. The shift from Catholic to Protestant governance aligned with emerging Protestant legal doctrines, particularly sola scriptura (the authority of scripture over ecclesiastical institutions) and the rejection of papal supremacy.[18]

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[9] Robert A. Williams, *The American Indian in Western Legal Thought: The Discourses of Conquest* (Oxford University Press, 1990), 325.

[10] Ibid.

[11] Noel Cox, "The Influence of the Common Law and the Decline of the Ecclesiastical Courts of the Church of England," *Rutgers Journal of Law and Religion* 3 (2002): 1–2.

[12] Ibid.

[13] Robert J. Miller, *Native America, Discovered and Conquered: Thomas Jefferson, Lewis & Clark, and Manifest Destiny* (2006), 9, 11–13, 79–80.

[14] Royal Museums Greenwich, "Why Did Henry VIII Break with Rome?," https://www.rmg.co.uk/stories/topics/why-did-henry-viii-break-rome.

[15] *Johnson v. McIntosh*, 21 U.S. 543, 676 (1823).

[16] Royal Museums Greenwich, supra note 14.

[17] Cox, supra note 11, at 3.

[18] Ibid.

### *The Mechanics: The Legal Framework of Supremacy — from ius commune ecclesiasticum (Canon Law) to ius commune (Common Law)*

The transition from papal to royal supremacy in England was a two-step legal process, first severing papal jurisdiction through the Act of Restraint of Appeals (1533), and then reconstituting that authority within the Crown through the Act of Supremacy (1534). Several other complementary legislations were also created.

Dictatus Papae (1075) and its 27 papal principles established the Pope's absolute sovereignty (res nullius) by asserting his universal jurisdiction (Principle 1), his authority to depose rulers (Principle 12), and his infallibility in doctrinal matters (Principle 22).[19] The Act of Restraint of Appeals dismantled these claims by declaring in its preamble that "this realm of England is an empire… governed by one supreme head and king," asserting that English sovereignty was complete and indivisible — an a priori.[20] Section 1 of the Act prohibited appeals to Rome in key legal matters, including matrimony and testamentary disputes, while Section 2 mandated that "all causes shall be finally determined within the king's jurisdiction," ensuring no foreign power could intervene.[21]

Having legally severed ties with Rome, the Act of Supremacy (1534) then transferred this absolute authority to the monarch, declaring in Section 1 that the King "shall be taken, accepted, and reputed the only supreme head on earth of the Church of England." This paralleled Dictatus Papae's assertion that the Pope alone could be "called universal" (Principle 2), now applied to the English Crown. The Act further granted the monarch the power to define doctrine and discipline, stating in Section 2 that the King had "full power and authority" to correct "heresies, errors, abuses, offences, contempt's, and enormities."[22]

The later 1559 Elizabethan reenacted Act of Supremacy reinforced this shift by explicitly rejecting papal authority, stating in Section 2 that "no foreign prince, person, prelate, state, or potentate shall exercise any manner of jurisdiction, spiritual or temporal, within this realm."[23] Through this two-act process, England secularized the Pope's absolute sovereignty, embedding it within the Crown while preserving the fundamental structure of absolute, unquestionable authority (Chamber 1).

Henry VIII also commissioned the Great Bible (1539) to replace the Vulgate (Latin translation of Bible) and Wycliffe Bible (14th century), the Catholic English-translated version, further reinforced Protestant ideals by framing the divine right of rulers within a Protestant context, legitimizing Henry VIII's sovereignty and the Crown's dominion over newly "discovered" lands. The Great Bible relegated the Catholic Deuterocanonical books (the Apocrypha) to an appendix or removed them entirely, aligning with Protestant beliefs that these books were not divinely inspired.[24]

### *Power Transfer: From Papal Supremacy to Royal Sovereignty*

The Act of Restraint of Appeals and the Act of Supremacy did not abolish the Two Swords doctrine; they transformed it into a Two-Chamber doctrine. What had once been a division

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[19] *Dictatus Papae* (1075).

[20] *Act of Restraint of Appeals* (1533), 24 Hen. VIII, c. 12.

[21] *Ibid,* c. 12., §§ 1–2.

[22] *Act of Supremacy* (1534), §§ 1–2.

[23] *Act of Supremacy* (1559), § 2.

[24] Rochester Cathedral, "The Great Bible (1539)," (2017).

between spiritual and temporal power under papal authority became a division between absolute sovereignty (Chamber 1) and legal governance under the Crown (Chamber 2). This was not a break from medieval legal theology but rather its secularization into common law rhetoric.

Just as the Pope's supremacy was a prerogative power beyond legal challenge, the Crown's royal prerogative—absolute sovereignty (Chamber 1)—became an unquestionable axiom, a preemptive fact that the legal system merely administered.[25] The king, in rejecting papal overlordship, did not reject the logic of absolute dominion; rather, he claimed it for himself. With it came the right to structure legal containment beneath this sovereignty (Chamber 2). The resources (e.g., gold and silver) of land "discovered" by the Crown (by way of prerogative powers) were also preemptively deemed the property of the Crown (waiting to be found).[26] These shifts secularized both canon law and the Doctrine of Discovery, embedding its core assumptions into English common law while preserving its fundamental structure as an a priori assertion of sovereignty (Chamber 1) and an a posteriori system of territorial acquisition (Chamber 2).

Once this absolute claim was made (Chamber 1), the role of law was confined to modes of acquisition (Chamber 2), deciding not whether Indigenous peoples had sovereignty, but what proprietary rights (if any) could be recognized within the imposed sovereign order — rights contingent on constructed hierarchies of humanity, framed through notions of "barbaric," "heathen," "pagan," and "infidel" status.

This is the illusion of acquisition: the false premise that sovereignty and territorial acquisition are part of the same process. They are not. The first sword (absolute sovereignty — Chamber 1) is proclaimed, and only afterward does the second sword (legal administration — Chamber 2) begin its work, defining the conditions of landholding within an already-assumed dominion.

This is why colonial courts, from Johnson v. McIntosh (1823) through to Mabo v. Queensland (No. 2) (1992), never adjudicate sovereignty itself — it is non-justiciable. Sovereignty is not a legal question; it is a fait accompli, a prerogative truth that stands outside the realm of legal reasoning (Chamber 1).[27] The courts operate only within Chamber 2, determining whether Indigenous landholding is classified as mere occupancy, usufruct, native title, or something slightly more recognizably proprietary — e.g., leasehold. The system ensures that all legal challenges remain contained within the logic of Crown dominion, just as medieval kings ruled within the supremacy of the Pope within Christendom. The illusion of legal process disguises the reality of absolute power — the first Chamber is never on trial.

### *Secularizing the Law*

The secularization of the Doctrine of Discovery over time has been and remains an iterative process, achieved through charters, proclamations, legislation, and especially case law, as courts reinterpret and adapt its principles within the evolving framework of common law. Each new case that revisits or reinterprets the principles of the Doctrine of Discovery contributes to its ongoing secularization, embedding these doctrines within a legal framework increasingly detached from its theological origins. The Australian case law is a very good example of the secularization process over time.

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[25] *Calvin's Case* (1608) 7 Co. Rep. 1a, 77 Eng. Rep. 377.

[26] *Case of Mines (R v. Earl of Northumberland)* (1568) 1 Plowden 310, 75 Eng. Rep. 472.

[27] *Mabo v. Queensland (No. 2)*, supra note 8.

Every subsequent case that builds on these foundations continues the secularization process, stripping away the explicit theological language of the Doctrine of Discovery while retaining its structural effects. Courts reinterpret these principles within new legal and social contexts, embedding doctrines like feudal title, radical title, "unoccupied, unsettled, vacant" land (termed terra nullius in Mabo), and diminished Indigenous sovereignty within common law. This gradual evolution underscores how secular legal systems can perpetuate colonial hierarchies through reinterpretation rather than outright rejection, allowing the Doctrine of Discovery to persist in transformed, secularized forms. By way of example, the Australian case law reinterpreted the euphemism terra nullius on numerous occasions. It began as "unoccupied wasteland" in Attorney-General v. Brown (1847), and is now an "act of state" assertion (prerogative power) — which is what it always was.[28]

### *Pre-emptive Sovereignty (Absolute)*

Pre-emptive sovereignty, grounded in just war theory (bellum justum), functioned as an unassailable prerogative preceding legal order. Initially exercised by the papacy under divine mandate, later by the Crown as absolute monarchy, it justified dominion over non-Christian lands before ships sailed, or conflict or exploration occurred. Augustine[29] and Aquinas[30] framed this through just war theory, while Vitoria[31] and de Soto [32] debated sovereignty over Indigenous lands, with Vitoria arguing war was permissible if non-Christians violated "natural law."

Secularised into royal supremacy, this logic became a prerogative act of state, allowing sovereigns to assert authority without legal recourse. Grotius[33] extended this to international law, legitimizing sovereignty over lands deemed politically or legally deficient — reflected in res nullius, nullus, and terra nullius, denying Indigenous sovereignty. Johnson v. McIntosh (1823) upheld this, ruling European nations acquired sovereignty "by discovery," rendering Indigenous occupation legally void unless sanctioned by the state.[34] Thus, sovereignty is not acquired but asserted preemptively — an act of power framed as inevitability.

This dual-chamber model insulates absolute sovereignty (res nullius) (Chamber 1) from challenge, while legal fictions — conquest (occupancy rights), cession (treaty rights), occupation (nil rights/native title rights) — contain the sovereign act within justiciable limits (Chamber 2). Courts only assess Indigenous claims within preordained structures (Chamber 2), never questioning sovereignty itself (Chamber 1).[35]The state monopolizes legitimacy, as the papacy once did. Challenging a mode of acquisition (Chamber 2) reinforces sovereignty (Chamber 1) rather than disrupting it, as seen in Mabo's "non-justiciable act of state" distinction. This dual-chamber legal illusion effectively entraps Indigenous peoples.[36] The

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[28] *Attorney-General v. Brown* (1847) 1 Legge 312 (NSWSC); *Mabo*, supra note 8, [31].

[29] David George Moore, "An Encouragement to Read Augustine's Big Book, *The City of God*," *Knowing & Doing* (C.S. Lewis Institute, 2018).

[30] Frank L. Cross & Elizabeth A. Livingstone, eds., *The Oxford Dictionary of the Christian Church* 1625–28 (3d ed. 2005); Pasnau, supra note 3.

[31] Anthony Pagden & Jeremy Lawrance, eds., *Vitoria: Political Writings* (1991).

[32] Guillame Dauchy et al., *The Formation and Transmission of Western Legal Culture* (2016), 84-86

[33] Miller, supra note 13, at 26–27.

[34] Hugo Grotius, *The Rights of War and Peace* (1625), ed. Richard Tuck (2005).

[35] *Johnson v. McIntosh*, supra note 15, at 572–73.

[36] Kent McNeil, *Flawed Precedent: The St. Catherine's Case and Aboriginal Title* (2005), 116

fiction of lawful acquisition contains a sovereignty never requiring legal justification. As Law Professor Emeritus Peter P. d'Errico suggests — it is a "covenant of authorized righteousness."[37]

## *After the Act of Supremacy*

Legal theorists such as Jean Bodin, Thomas Hobbes, John Locke, William Blackstone, and Edward Coke (amongst others) played pivotal roles in reshaping sovereignty within a secular common law framework. They are often celebrated as independent thinkers whose ideas shaped modern legal and political theory that underpins common law. Yet, this portrayal obscures their function as intellectual operatives working within the constraints of political, religious, and institutional power. Their works were not purely theoretical musings, but rather constructed fictions designed to rationalize and legitimize systems of race-based power. These theorists operated within frameworks of state sponsorship, political necessity, and institutional expectations, producing ideas that aligned with the agendas of those who funded or promoted them. Without these alignments, their influence would likely have been negligible. Far from being free thinkers, many were commissioned or supported by political and religious authorities to uphold prevailing ideologies. Deeply embedded in Protestant values, their writings were deliberate responses to the political and economic demands of their time — entrenching prerogative powers (Chamber 1), justifying monarchy, and rationalizing the human wrongs of colonial expansion and white supremacy.

Bodin's concept of absolute sovereignty, articulated in Six Books of the Republic (1576), laid the foundation for the principle that sovereign power was absolute, indivisible, and derived from the monarch rather than from divine or ecclesiastical authority.[38] Hobbes reinforced this in Leviathan (1651), arguing that sovereignty existed outside moral or religious justification, residing instead in the absolute power of the state.[39] This theoretical foundation enabled English law to translate earlier papal justifications for conquest into legal doctrines that facilitated imperial expansion under secularized terms.

The Statutes of Kilkenny (1366) and subsequent Crown claims over Ireland under Henry VIII and Elizabeth I established a legal framework in which sovereignty was asserted over non-English populations through the doctrine of conquest while simultaneously denying full legal rights to the colonized.[40] These principles were later refined in Calvin's Case (1608), where Coke established the doctrine of perpetual allegiance, reinforcing a distinction between those who could be fully incorporated as English subjects and those who remained outside the law's full protections.[41] This decision not only secured James I's claim to dominion over Scotland and Ireland but also created a radicalized legal structure that adapted from and built upon the edifice of legal history — later deployed in the Americas, Africa, Australia, Canada, and New Zealand.[42] Similarly, in Case of Mines (R v. Earl of Northumberland, 1568), the judiciary affirmed the Crown's absolute authority (sovereignty) over natural resources (gold and silver)

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[37] *Mabo*, supra note 8.

[38] Peter P. d'Errico, *Federal Anti-Indian Law: The Legal Entrapment of Indigenous Peoples* (2022), xviii

[39] Jean Bodin, *Six Books of the Commonwealth* (1576), trans. M.J. Tooley (1962) bk. I, chap. 8, 25–30.

[40] Thomas Hobbes, *Leviathan* (1651).

[41] David Armitage, *The Ideological Origins of the British Empire* (2000), 60–67

[42] *Calvin's Case*, supra note 25.

within its territories, further secularizing royal dominion as a prerogative unbounded by ecclesiastical oversight.[43]

The oath of allegiance introduced under James I further entrenched this secularization by requiring subjects to affirm their loyalty to the monarch rather than to the Pope, consolidating sovereignty as an absolute power derived from the Crown rather than a divine intermediary.[44] Locke, while advocating for property rights in Two Treatises of Government,[45] extended this logic to justify colonial dispossession, arguing that land belonged only to those who "improved" it — a concept that directly informed later legal doctrines such as terra nullius.[46] The English claim to sovereignty over Ireland, based on alleged cultural and agricultural superiority, became a precedent for later territorial acquisitions in the Americas and the Pacific. In Australia, this principle of absolute sovereignty underpinned Attorney-General v. Brown (1847), was reiterated by the Privy Council in Cooper v. Stuart (1889), and reaffirmed decades later in Milirrpum v. Nabalco Pty Ltd (1971). Throughout these 124 years, Indigenous peoples were relegated to the lowest racial category within the legal sphere, treated merely as subjects of occupation, with no proprietary rights, or rights of any kind attributed at all.

Thus, racial containment underpins every radical (and feudal) notion of land tenure in modern times. This process of secularization ultimately functioned as an instrument of white supremacy, ensuring that the radicalized structures of colonial rule remained intact under a veneer of legal rationality. By transforming res nullius from a theological claim into a legal principle of absolutism, English common law erased Indigenous sovereignty while appearing to function within a neutral legal framework. The shift from papal to royal to common law sovereignty did not challenge the legitimacy of dispossession; rather, it insulated it from theological critique, embedding radicalized legal fictions into the very fabric of Anglo-imperial jurisprudence.

### *Australian Case Law: A Two-Chamber Illustration*

The shifting terminology (secularizing) in Australian case law provides a clear illustration of the two-chamber dual model in action. Initially, legal justifications for British territorial claims relied on strong Chamber 1 assertions — absolute sovereignty (*res nullius*), secured through a non-justiciable act of state (prerogative power). However, as challenges emerged regarding the mode of acquisition (occupation), courts increasingly adapted their language to maintain Chamber 2 — the containment mechanisms governing proprietary rights. The evolution of legal terminology demonstrates this adaptation, as legal fictions were reformulated to preserve British sovereignty while addressing growing critiques.

### *Chamber 1: Absolute Sovereignty (Res Nullius)*

At the outset, the assertion of Crown sovereignty in Australia was grounded in absolute terms, requiring no legal justification beyond the act of state itself. Early case law framed the land as:

- Unoccupied;

[43] Patricia Seed, *Ceremonies of Possession in Europe's Conquest of the New World, 1492–1640* (1995), 10.

[44] *Case of Mines*, supra note 26.

[45] John Locke, *Two Treatises of Government* (1689; Project Gutenberg ed., 2003).

[46] Noel Cox, *The Oath of Allegiance and the Act of Settlement*, 36 *Commonwealth L. Bull.* (2010),103–10

- Unoccupied waste land (*Attorney-General v. Brown*, 1847);[47] and
- Unpeopled territories (*Wilson v. Terry*, 1849).[48]

These terms reflect a pure *res nullius* claim — land that belonged to no one and was thus available for sovereign acquisition without regard to pre-existing Indigenous occupation. Such framing ensured that sovereignty was beyond legal challenge, a core feature of Chamber 1.

### *Chamber 2: 'Occupation' Based Acquisition*

As legal disputes arose, the courts shifted towards more refined definitions that still preserved the underlying prerogative power but engaged with legal challenges by reframing Indigenous presence as insufficient to disrupt proprietary claims:

- Without recognized governance (*Cooper v. Stuart*, 1889; *Milirrpum v. Nabalco Pty Ltd*, 1971);[49]
- Without settled inhabitants or settled law (*Cooper v. Stuart*; *Milirrpum*);[50] and
- Practically unoccupied (*Campbell v. Hall*, 1774).[51]

These formulations acknowledge some form of Indigenous presence but deny its legal significance within the colonial legal framework. By moving from outright *res nullius* to justifications based on governance, law, and civilization, the courts subtly transitioned into Chamber 2, maintaining containment through "occupation" (*terra nullius*).

The later evolution of legal terminology reveals the incremental recognition of Indigenous presence, yet only within a containment framework (Chamber 2) that ensured the Crown's prerogative remained intact:

- A territory which, by European standards, had no civilized inhabitants or settled law (*Milirrpum*);[52] and
- Was possible where land was inhabited by people with a "social organization" and a "legal system," provided they "were not European in style" (*Milirrpum*).[53]

This shift underscores the continued function of Chamber 2 — reinterpreting Indigenous presence in ways that preserved the Crown's prerogative while adapting containment mechanisms to maintain legal legitimacy. It also demonstrates the legal fiction of perceived "backwardness," whereby recognition of social or legal structures was incremental and conditional, never rising to a level that could challenge Chamber 1's absolute sovereignty claim.

Crucially, the term *terra nullius* was never a sovereignty doctrine. It was only ever relevant where sovereignty had already been asserted through *res nullius* and acquisition was based on occupation. In cases of conquest or cession, *terra nullius* was not at issue because sovereignty was asserted over a recognized political entity — via different modes of acquisition. This is

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[47] *Attorney-General v. Brown*, supra note 28.

[48] *Wilson v. Terry* (1849) Legge 505.

[49] *Cooper v. Stuart* (1889) 14 App. Cas. 286 (P.C.); *Milirrpum v. Nabalco Pty Ltd* (1971) 17 FLR 141.

[50] *Ibid.*

[51] *Campbell v. Hall* (1774) 1 Cowp. 204, 98 Eng. Rep. 1045.

[52] *Milirrpum*, supra note 49.

[53] *Ibid.*

why the British applied different legal frameworks in the U.S., Canada, and New Zealand — whereas Australia was unique in requiring occupation-based justifications after a *res nullius* claim.

### *Mabo: Secularizing the Framework Further*

*Mabo* marked a critical turning point by stripping away overtly radicalized and archaic justifications. It restructured Chamber 2 through legal formalism, reaffirming Crown sovereignty (Chamber 1) as an act of state and making it non-justiciable:

- An act of state (*Mabo v. Queensland (No. 2)*, 1992, per Brennan J., [31]);[54]
- Non-justifiability (*Mabo*, [27]);[55]
- Upholding skeletal principles (*Mabo*, [29], [43]).[56]

Rather than dismantling the two-chamber structure, *Mabo* sanitized it, reaffirming the absolute sovereignty of the Crown (*res nullius*, Chamber 1) while redefining Chamber 2 to accommodate limited Indigenous proprietary claims within common law. Importantly, *terra nullius* was not a term used in English colonialism or early case law — it only emerged in *Mabo* as a judicial reinterpretation. Courts had historically relied on terms like "unoccupied" or "waste lands," reflecting *res nullius* assertions rather than a distinct doctrine of *terra nullius*.

The invocation of the term *terra nullius* for the first time in *Mabo* was not a legal correction but a rhetorical maneuver that preserved the legitimacy of colonial sovereignty while appearing to acknowledge Indigenous rights. To admit that the Crown had asserted sovereignty over land that was already "occupied" would expose the legal fiction for what it was: a self-serving doctrine of dispossession. Instead, *Mabo* reframed the issue, suggesting that native titles could coexist within a *terra nullius* framework, as if it had been waiting to be "discovered" all along. This allowed the High Court to maintain the illusion of legal continuity — rather than admitting that British assertions of sovereignty were based on a radicalized denial of Indigenous presence and law.

The term *terra nullius* provided a facade of legal sophistication that concealed the deeper contradiction: how could native title exist in a land that was supposedly "nobody's" (unoccupied/vacant) at the moment of British acquisition? The answer lies in the strategic ambiguity embedded within the edifice of legal fictions. The court's decision did not dismantle the underlying structure of colonial authority; it merely adjusted its terms, making the dispossession of Indigenous peoples more palatable by retroactively inserting them into a framework that had always excluded them.

In a sense, *terra nullius* itself became a secularizing term, masking the heinous atrocities of colonization while veiling them behind the language of legal formalism. It served as a whitewash — a juridical abstraction that sanitized the violence of dispossession by reducing it to a question of "occupation" rather than sovereign theft. By framing colonization in terms of legal tests rather than brute force and violence, *Mabo* further embedded the containment mechanisms of Chamber 2, ensuring that *terra nullius* remained a tool of reinterpretation rather than a genuine break with the past.

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[54] *Ibid,* 8, [31].

[55] *Ibid,* 8, [27].

[56] *Ibid,* 8, [29], [43].

*Mabo* reaffirmed that sovereignty was a non-justiciable act of state (*Mabo*, [31–32]).[57] The doctrine of *terra nullius* preserved the Crown's absolute sovereignty (*res nullius*), even as it was redefined. *Mabo* did not challenge sovereignty; it merely affirmed it. Nor did it overturn *terra nullius*; instead, it reinterpreted "occupation" (of which *terra nullius* is a part-test) to include limited forms of native title — usufruct proprietary rights subordinate to the Crown (*Mabo*, [16], [19], [27]),[58] akin to Blackstone's "occupancy" rights in *Johnson v. McIntosh* (1823).[59] The ruling reinforced that sovereignty itself remained beyond legal challenge.

If *Mabo* had truly overturned *terra nullius* as a mode of acquisition, the legal system would have been forced to adopt an entirely new mode of acquisition to manage Indigenous proprietary rights (ceded or conquer). The High Court in *Mabo* made it clear that a challenge to sovereignty (divine/royal/state prerogative) was beyond the jurisdiction of the domestic court. Instead, the courts reinterpreted *terra nullius* (again) rather than discarding it, which allowed them to continue managing rights within the same legal framework. The courts carefully confined *Mabo* (as they do in other jurisdictions when questions of acquisition arise), to a reinterpretation of land tenure (proprietary rights) — not sovereignty — so that they could maintain sovereignty, and so they could continue using precedent cases that relied on *terra nullius* as a legal basis. Despite the ostensible judicial emancipation from *terra nullius*, the endurance of cases like *Attorney-General v. Brown* (1847), and their flow-on effects (precedent value) in decisions such as *Randwick Corporation v. Rutledge* (1959), *New South Wales v. The Commonwealth* (*The Seas and Submerged Lands Case*) (1975), and *Mabo* itself, exposes the jurisprudential mechanics of the two-chamber system.

The Australian case history vividly demonstrates how courts have consistently reinterpreted the edifice of legal fictions to preserve the two-chamber framework, using evolving terminology to shift challenges within Chamber 2 without ever allowing them to reach Chamber 1. By securing sovereignty as an unquestionable act of state and adjusting containment mechanisms over time, the legal system ensured that sovereignty itself was never on trial — only the means by which Indigenous proprietary rights could be constrained within common law (Chamber 2). Property law, in both its radical and feudal tenures, relies on the principle of racial containment (Chamber 2).

### *Johnson v. McIntosh: A Two-Chamber Illustration*

*Johnson v. McIntosh* (1823) also highlights the two-chamber model: absolute sovereignty (Chamber 1) was asserted as non-justiciable, while modes of acquisition (Chamber 2) contained proprietary rights within U.S. legal structures. The case marks a jurisdictional shift — from Catholic England's doctrine of discovery, through Protestant common law, to its secularization in U.S. state law — a hybrid application of the Doctrine of Discovery.[60] This precedent case has also helped shape sovereignty cases in Australia, New Zealand, and Canada for over 200 years. Marshall reaffirmed Crown prerogative as the exclusive source of authority, inherited by the U.S.:

- "The principle of discovery gave exclusive title to those who made it."[61]

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[57] *Ibid,* 8, [31–32].

[58] *Ibid,* 8, [16], [19], [27].

[59] *Johnson v. McIntosh*, supra note 15, at 572–73.

[60] *Johnson v. McIntosh*, supra note 15, at 574.

[61] 21 U.S. 543, 574.

- "The United States, as they have taken over the rights of Great Britain, must respect this principle."[62]

This confirmed that sovereignty was a prerogative act — established through *res nullius*, beyond legal challenge. Discovery functioned preemptively, as seen in Cabot's Charters (1496, 1498), asserting sovereignty before conquest or settlement. The U.S. simply inherited this absolute authority upon independence.

### *Chamber 2: Containment — the Fiction of Native Occupancy*

With sovereignty secured (Chamber 1), *Johnson* turned to containment (Chamber 2). The doctrine of Native "occupancy" allowed limited possession but denied full ownership:

- "The tribes were admitted to be the rightful occupants of the soil."[63]
- "But their rights to complete sovereignty… were necessarily diminished."[64]

This mirrored English case law: Indigenous presence was acknowledged only insofar as it did not challenge Crown sovereignty.[65] The fiction of "backwardness" framed Indigenous landholding as usufructuary rather than ownership via Chamber 2, ensuring sovereign title remained with the state (Chamber 1).

Like Australian case law, *Johnson v. McIntosh* maintained containment structures while preventing challenges to sovereignty itself. This ruling remains foundational in U.S. property law, embedding discovery-based prerogative powers within common law.[66]

### *Native Usufruct Rights — Usufructus — "User"*

The concept of "occupancy rights" articulated by Blackstone[67] and applied in *Johnson v. McIntosh* (1823) bears striking similarities to the "native title" framework established in *Mabo v. Queensland (No. 2)* (1992) 169 years later. Both cases recognize Indigenous peoples' rights to "use" land (Chamber 2) under certain conditions but subordinate these rights to the ultimate sovereignty (Chamber 1) of the colonial state.

The property law concept of "native title," like "occupancy" rights, is effectively a form of usufruct rights, reflecting the superior–inferior societal construct grounded by the Doctrine of Discovery and the 1534 *Act of Supremacy*. Native title, like "occupancy," is a manufactured inferior title derived from the so-called "law of nature." *Mabo* framed native title as a "gift" of common law — a bundle of rights[68] extended to Indigenous peoples. These common law usufruct rights are limited and codified in sections 211 and 223 of the *Native Title Act 1993* (Cth). Notably, native title was only formally acknowledged as a lawful right in Australia 33 years ago, despite the concept being used by Britain for centuries — a glaring example of white supremacy.

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[62] Ibid.

[63] Ibid.

[64] Ibid.

[65] Williams, supra note 9, at 325.

[66] *Tee-Hit-Ton Indians v. United States*, 348 U.S. 272 (1955).

[67] William Blackstone, *Commentaries on the Laws of England* (1765–1769) (Avalon ed. 2008).

[68] Mabo, supra note 8, at 100.

The English term *usufruct* originates from the Latin *usufructus*, meaning "the use (*usus*) of the fruits (*fructus*)" of land owned by another.[69] This term refers to the use and enjoyment of resources, whether animal or plant, from land belonging to someone else. This notion underpins the fictitious radicalized construct of Indigenous peoples in Australia as "nomadic hunter-gatherers" — a model aligned with the theory of *usufruct*, perpetuated as a lawful right attributed to a native — a right to "use" the bundle of fruits of nature.

Blackstone,[70] in his *Commentaries on the Laws of England*, defined property rights in terms of the occupation and productivity and use of land by the Crown, with Native peoples being viewed as having a limited, usufructuary right to land (in a broad sense) — essentially, Indigenous peoples could "use" the land but not truly own it. This view of Indigenous peoples' relationship to land is grounded in the idea that they were "occupants" but not sovereign "owners," as their rights were seen as contingent upon European notions of sovereignty and ownership. This view became entrenched in colonial legal systems and has justified the Crown's claim over the land.

In the wake of the *terra nullius* fiction, native title became the Australian High Court's (Crown's) fallback position at law — Blackstone's "user" "occupancy"-style right. Native title also marked a shift in narrative, from the dehumanizing fiction of "land belonging to nobody" to a racially inferior framework of law (prerogative powers). The Blackstonian "occupancy" "user"-style construct contains Indigenous peoples in "barbaric," "heathen," "user" models and frames Indigenous rights as inherently subordinate — limited to a codified bundle of usufruct rights, on a limited amount of designated land, with a very strict burden of proof that can take a decade or two, sometimes three, to prove, that costs millions of dollars (for lawyers), and that can be taken away at the whim of the Crown. Moreover, *Mabo* limited native title to activities deemed "traditional."[71] By doing so, they not only limited the number of "natives" eligible to make application, but the legal system traps Indigenous people in a historical fiction, requiring them to conform to colonial perceptions of historical authenticity to maintain Indigenous rights — fossilizing Indigenous culture to ideals of perceived historical norms, whilst at the same time, allowing their own to be fluid and modern.

The 18th-century Blackstonian "occupancy" muse of racial inequality, dressed as a right for a "user," was rebranded as equality and sold as an advancement of Indigenous people's human rights in *Mabo*. Native title is neither equality nor a human right; rather, it is Blackstone's well-established inequality and human wrong from the 1760s, applied in *Johnson v. McIntosh* in the U.S. in 1823 (establishing a global precedent), that was intentionally overlooked in the theft of Indigenous lands renamed Australia in 1788. It is not a modern-day step up to full equality; it is a human wrong that shackles Indigenous people's self-determination (sovereignty) to the Crown as "inferior." Whilst it may be a step up in humanity from the invisible human being ("unoccupied wasteland"), Blackstone's "user rights" posit Indigenous peoples somewhere in the middle of the Crown's manufactured incremental rise in humanity from "barbaric" to "civilised." Not quite human enough to "own" their land, rather, limited to "using" the "fruits" of *their* (Crown) land akin to wildlife — confined within the Crown's hierarchical menagerie of humanity — their zoo of human hierarchy.[72]

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[69] "Usufruct," Merriam-Webster Dictionary, https://www.merriam-webster.com/dictionary/usufruct.

[70] Blackstone, supra note 67.

[71] *Mabo*, supra note 8, at [27].

[72] Derek Gregory, *The Colonial Present*, blog (2017).

## *Conclusion*

The stench of papal, royal, and state supremacy lingers in every crevice of the common law, its legal fictions woven so tightly into the fabric of sovereignty that they remain unquestioned (Chamber 1). The Doctrine of Discovery, transformed through the *Acts of Supremacy*, secularized papal dominion into royal prerogative, making sovereignty an unquestionable act of state. This absolute authority was never just about land; it extended over people, resources, and the classification of humanity itself. Slavery and territorial expansion were two arms of the same doctrine, both justified through race-based legal fictions that deemed some fit to rule and others destined to be ruled.[73]

While slavery has been abolished, the legal frameworks of property that developed alongside it remain intact, sustaining the logic of ownership and dispossession. The colonial legal system still operates on radicalized hierarchies — *res nullius*, *nullus*, *terra nullius* — trapping Indigenous peoples within a framework of containment. Positioned between enslavement and sovereignty, they are legally engineered as something less than owners, never fully enslaved but never fully sovereign. Doctrines of occupancy and native title maintain this legal limbo, ensuring Indigenous peoples remain within the structures of domination that the Doctrine of Discovery set in motion.

If King Charles III is sincere in addressing this legacy, he must go beyond the Catholic Church's symbolic rescinding of the Doctrine of Discovery. The Vatican's admission acknowledges its violent legacy, but it does nothing to dismantle the legal and political structures built upon it.[74] Likewise, royal acknowledgments or expressions of regret are meaningless if they do not confront the legal fictions that sustain the Crown's claim to Indigenous lands. The British monarchy, having used the Doctrine of Discovery to justify both the transatlantic slave trade and colonial expansion, bears a unique responsibility to dismantle the sovereignty it declares absolute. If the legal structures that upheld slavery are now condemned, then the sovereignty that justified them must also be dismantled. Just as slavery was once justified under the Doctrine of Discovery, so too is the continued dispossession of Indigenous peoples. Until the foundations of absolute sovereignty and royal prerogative are confronted and overturned, the colonial state will continue to uphold a legal order built not for justice, equality and human rights, but for domination.

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[73] Andrea Vieru, *Racialized Hierarchies and the Legal Legacy of Empire: Sovereignty and Slavery in Colonial Law* (2010), 115.

[74] Holy See Press Office, "*Joint Statement on the Doctrine of Discovery,*" (March 30, 2023), https://press.vatican.va/content/salastampa/en/bollettino/pubblico/2023/03/30/230330c.html.